

25STCV06055 25STCV06055

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-08-14

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Case Number: 25STCV06055 Hearing Date: August 14, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: August

14, 2026 TRIAL

DATE: February 14, 2028

CASE: Marc L. Benezra,

Trustee of the Marc L. Benezra 2015 Irrevocable Gift Trust v. Dena Benezra

CASE NO.: 25STCV06055

PLAINTIFF

AND CROSS-DEFENDANT MARC BENEZRA'S MOTION TO COMPEL DEPOSITION AND REQUEST FOR
MONETARY SANCTIONS

MOVING PARTY: Plaintiff

Marc L. Benezra

RESPONDING PARTY: Defendant Dena

Benezra

I. BACKGROUND

This is a

declaratory relief action concerning the sale of the real property located at 3300
Ocean Drive, Oxnard, California (the "Property").

On March 17, 2026, Plaintiff, Marc L. Benezra, filed this motion to compel Defendant, Dena L. Benezra, to appear for deposition. Plaintiff requests sanctions against Defendant.

On August 3, 2026, Defendant filed an opposition.

Plaintiff had not filed a reply at the time of this writing.

II. DISCUSSION

The motion is moot. Defendant appeared for deposition on June 26, 2026, and the parties agreed to a second session. (Franck Decl., ¶¶ 2, 8.) There is no basis to compel Plaintiff's deposition. Further, Defendant demonstrates the parties engaged in lengthy meet and confer efforts which rendered this motion as unnecessary. (See Franck Decl., Ex. B.) Accordingly, the court declines to award any sanctions.

III. CONCLUSION

The motion is DENIED.

Moving party to give notice, unless waived.

Dated: August 14, 2026

Brock T. Hammond

Judge of the Superior Court